

Adivasi Janajati Commission Act, 2017

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Indigenous Nationalities Commission Act, 2074 (2017)

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Amending Act

1. Act Amending Some Nepal Acts, 2075 (2018) 2075.11.19

Act No. 19 of the year 2074 (2017)

Preamble: Whereas, it is desirable to make necessary provisions regarding the Indigenous Nationalities Commission for the protection, promotion, and enhancement of the identity, rights, and interests of the glorious history and culture of the Indigenous Nationalities community, and for the empowerment of the Indigenous Nationalities community,

The Legislature-Parliament has enacted this Act in accordance with Sub-Article (1) of Article 296 of the Constitution of Nepal. Chapter 1

Preliminary

1. Short Title and Commencement: (1) This Act may be cited as the "Indigenous Nationalities Commission Act, 2074 (2017)."

(2) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act, -

(a) "Chairperson" means the Chairperson of the Commission and that word also denotes the Acting Chairperson. Amended by the Act Amending Some Nepal Acts, 2075 (2018). (b) "Indigenous Nationality" means a caste or community designated by the Government of Nepal upon the recommendation of the Commission.

(c) "Commission" means the Indigenous Nationalities Commission pursuant to Article 261 of the Constitution.

(d) "Prescribed" or "as prescribed" means prescribed or as prescribed by the rules made under this Act.

(e) "Member" means a member of the Commission and that word also denotes the Chairperson.

(f) "Constitution" means the Constitution of Nepal. Chapter 2

Qualifications of the Chairperson and Members and Circumstances of Vacancy

3. Qualifications of the Chairperson and Members: The following person shall be qualified to be appointed to the office of the Chairperson and Member of the Commission: -

(a) An Indigenous Nationality who has contributed at least ten years in the field of protection, promotion, and empowerment of the rights and interests of the Indigenous Nationalities community or human rights or law,

(b) Having obtained a bachelor's degree from a recognized university,

(c) Not being a member of any political party at the time of appointment,

(d) Having completed the age of forty-five years,

(e) Having high moral character. 4.

Circumstances of Vacancy: The office of the Chairperson or Member of the Commission shall become vacant in any of the following circumstances: - (a) If he/she submits a written resignation to the President, (b) If he/she has completed the age of sixty-five years, (c) If the term of office pursuant to Sub-Article (3) of Article 261 of the Constitution expires, (d) If an impeachment motion is passed against him/her in accordance with Article 101 of the Constitution, (e) If the President removes him/her from office upon the recommendation of the Constitutional Council, stating that he/she is unable to perform duties while in service due to physical or mental illness, (f) If he/she dies. 5. Not Eligible for Re-appointment: The Chairperson and Member appointed in the Commission shall not be eligible for re-appointment. Provided that a Member may be appointed to the office of the Chairperson, and if such a Member is appointed to the office of the Chairperson, while calculating his/her term of office, the period of being a Member shall also be added and calculated. 6. Not Eligible for Appointment to Other Government Service: A person who has been the Chairperson or Member shall not be eligible for appointment to other government service. Provided that, nothing written in this section shall be deemed to prevent working by being appointed to any political position or any position for conducting research, inquiry, or investigation on any subject, or studying or exploring any subject and submitting opinion, observation, or recommendation. Chapter 3 Functions, Duties, and Powers of the Commission 7.

Functions, Duties, and Powers of the Commission: The functions, duties, and powers of the Commission shall be as follows: - (a) To study the overall situation of the Indigenous Nationalities community and recommend to the Government of Nepal on matters of policy, legal, and institutional reforms required in that regard, (b) To formulate national policies and programs for the protection and promotion of the rights and interests of the Indigenous Nationalities community and the empowerment of such community and recommend to the Government of Nepal for implementation, (c) To study and research whether the provisions made regarding the protection and promotion of the rights and interests of the Indigenous Nationalities community and the empowerment of such community have been effectively implemented, and advise the Government of Nepal on steps to be taken for effective implementation, (d) To advise the Government of Nepal on reforms required in existing legal, policy, and institutional arrangements regarding the protection and promotion of the rights and interests of the Indigenous Nationalities community and the empowerment of such community, (e) To review, monitor, and evaluate the implementation of policies and programs related to Indigenous Nationalities, (f) To monitor or cause to monitor the implementation of recommendations or advice given by the Commission, (g) To formulate special programs for the development and empowerment of persons within the Indigenous Nationalities community who are economically or socially backward and recommend to the Government of Nepal for implementation, (h) To study and research the various languages, scripts, cultures, histories, traditions, literature, and arts within the Indigenous Nationalities community, formulate programs for the protection and development of such languages, scripts, cultures, histories, traditions, literature, and arts, and recommend to the Government of Nepal, (i) To conduct awareness programs for the protection and promotion of the rights and interests of the Indigenous Nationalities community and the empowerment of such community, (j) To formulate programs to end existing evil practices, superstitions, and all forms of exploitation within the Indigenous Nationalities community and for the empowerment of the Indigenous Nationalities community, and recommend to the Government of Nepal, (k) To assist in preserving and promoting traditional skills, technology, and specialized knowledge existing in the Indigenous Nationalities community and bringing them into commercial use, (l) To monitor whether international treaties and agreements to which Nepal is a party concerning the Indigenous Nationalities community are implemented, and Amended by the Act Amending Some Nepal Acts, 2075 (2018). make necessary recommendations or advice to the Government of Nepal for implementation, (m) To collect complaints against persons or institutions violating the rights of the Indigenous Nationalities

community and recommend to the concerned body for investigation and inquiry thereof, (n) To conduct detailed study and research regarding the identity of the Indigenous Nationalities community and recommend to the Government of Nepal for listing surnames, (o) To formulate policies and programs for the establishment and operation of living museums for the protection and promotion of the tangible and intangible culture of the Indigenous Nationalities community and recommend to the Government of Nepal for implementation, (p) To research the origin sites of Indigenous Nationalities and recommend to the Government of Nepal to protect and promote such archaeological and historical structures, objects, and sites, (q) To review, monitor, and evaluate awareness programs conducted by the Government of Nepal and other associations and organizations for the protection, promotion, and empowerment of the rights and interests of the Indigenous Nationalities community, (r) To formulate and implement a code of conduct for the Chairperson, Members, and employees of the Commission, (s) To approve the annual plan and program of the Commission.

8. May Seek Advice and Consultation: The Commission may coordinate, consult, or seek advice from other constitutional bodies, government offices, or public institutions regarding its work and proceedings. 9. May Obtain Services of Experts: If any work required to be performed in accordance with this Act and prevailing federal law cannot be accomplished by the personnel working in the Commission, the Commission may, stating the reason thereof, obtain the services of an expert in accordance with the prevailing federal law. 10. May Form Committees or Task Forces: (1) For the purpose of performing any work of a special nature related to the Commission, the Commission may form a committee or task force by prescribing procedures. (2) The working condition or terms of reference of the committee or task force under Sub-section (1) shall be as determined by the Commission at the time of forming such committee or task force. (3) While forming a committee or task force under Sub-section (1), representation shall be made on the basis of the principle of proportionate inclusion as provided in the Constitution. 11. May Coordinate and Cooperate: The Commission may make necessary coordination and cooperation with government bodies or public institutions as required. Chapter 4

Conduct of Business of the Commission

12. Office of the Commission: (1) For the conduct of business of the Commission, the office of the Commission shall be located in the Kathmandu Valley. (2) The Commission may, as required, establish offices at the provincial Deleted by the Act Amending Some Nepal Acts, 2075 (2018). level. 13. Meeting of the Commission: (1) The work to be done by the Commission in accordance with this Act shall be done by the decision of the meeting of the Commission. (2) The meeting of the Commission shall be held on such date, time, and place as may be specified by the Chairperson as required. (3) The Secretary of the Commission shall specify the date, time, and place of the meeting of the Commission and send a notice including the agenda of subjects to be discussed in the meeting to all members ordinarily at least forty-eight hours before the time of the meeting. (4) If any Member wishes to discuss any subject other than those mentioned in the agenda of subjects to be discussed in the meeting under Sub-section (3), he/she shall give a notice to the Secretary of the Commission stating the subject and reason for wishing to discuss and at least twenty-four hours before the meeting.

Upon receipt of such notice, the Secretary of the Commission shall inform all members thereof, and such subject shall be deemed to be included in the agenda of the Commission.

(5) Notwithstanding anything written in Sub-sections (3) and (4), with the consent of all members present at

the meeting of the Commission, a subject not included in the agenda may also be discussed and decided upon.

(6) If more than fifty percent of the members currently holding office in the Commission are present, the quorum for the meeting of the Commission shall be deemed to be fulfilled.

(7) The meeting of the Commission shall be chaired by the Chairperson.

(8) Decisions of the Commission shall be made by a majority, and if the votes are equal, the Chairperson shall cast the deciding vote.

(9) The Secretary of the Commission shall prepare the record of the decisions of the Commission and have it signed by the Chairperson and Members. Amended by the Act Amending Some Nepal Acts, 2075 (2018).

(10) An officer of the Nepal Civil Service of the gazetted first class shall serve as the Secretary of the Commission. Until such employee is appointed, the most senior employee of the Commission shall serve as the Secretary of the Commission.

(11) Other procedures relating to the meeting of the Commission shall be as determined by the Commission.

14. Not to Participate in Decision-making Process in Case of Conflict of Interest: If any Member of the Commission has an interest, concern, or stake in any subject under consideration in the Commission, or if his/her close relative is directly affected, such Member shall give prior information of such matter to the Commission and shall not participate in the decision-making process of the Commission on such subject.

15. Division of Work: The division of work of the Chairperson and Members shall be as prescribed by the Commission.

16. To Act as Acting: If for any reason the office of the Chairperson becomes vacant, Amended by the Act Amending Some Nepal Acts, 2075 (2018). if he/she is unable to perform the functions of his/her office in accordance with Sub-Article (6) of Article 101 of the Constitution, or if he/she is on a foreign visit or on leave for more than seven days, the most senior Member of the Commission shall act as the Acting Chairperson of the Commission.

17. No Obstruction to Work and Proceedings of the Commission: The work and proceedings of the Commission shall not be obstructed merely by reason of a vacancy in the position of any Member.

Chapter 5 Miscellaneous

18.

Organizational Structure and Employees of the Commission: (1) The organizational structure and staffing of the Commission shall be as approved by the Government of Nepal. (2) The employees required for the conduct of business of the Commission shall be provided by the Government of Nepal.

19. To Observe Official Dignity and Conduct: (1) The Chairperson and Member of the Commission shall observe the following official dignity: - (a) To perform official duties independently, impartially, and honestly for the protection and promotion of the rights and interests of the Indigenous Nationalities community and for the empowerment of the Indigenous Nationalities community, (b) Not to do any act that disturbs relations between various castes, communities, and sects. (2) The Chairperson and Member of the Commission shall observe the official conduct in accordance with this Act or prevailing federal law.

20. Obligation to Provide Cooperation in Work and Proceedings: If the Commission requests cooperation from any body or office-bearer in the course of performing its functions, it shall be the duty of such body or office-bearer to provide such cooperation.

21. May Send Letter for Implementation: If any body or office-bearer fails to provide necessary cooperation to the Commission, the Commission may send a letter for cooperation to the concerned supervising body or officer of such body or office-bearer.

22. Annual Report: (1) The Commission shall submit an annual report of its work and proceedings to the President within three months from the date of expiry of the fiscal year. (2) In addition to other subjects, the annual report under Sub-section (1) shall include the following subjects: - (a) Details of implementation of the annual program of the Commission and cost expenditure, (b) Details of

recommendations and advice given by the Commission to the Government of Nepal or any other body, (c) Status of implementation of recommendations and advice under clause (b), (d) Status of financial and physical resources of the Commission and their utilization, (e) Details of other work and proceedings done regarding the fulfillment of duties to be performed by the Commission in accordance with this Act. 23. Liaison with Government of Nepal: While liaising with the Government of Nepal, the Commission shall do so Amended by the Act Amending Some Nepal Acts, 2075 (2018). through the Ministry of Federal Affairs and General Administration. 24.

Delegation of Powers: The Commission may, as required, delegate any of the powers conferred upon it under this Act to the Chairperson, Member, Government of Nepal, Provincial Government, any body, or any officer or employee of the local government to exercise and perform subject to prescribed conditions. Repealed by the Act Amending Some Nepal Acts, 2075 (2018). 25. 26. Protection of Acts Done in Good Faith: No legal action shall be instituted against any officer, employee, or any person deputed by the Commission for any act done in good faith in accordance with Amended by the Act Amending Some Nepal Acts, 2075 (2018). this Act or the rules made under this Act. 27. Power to Make Rules: (1) For the purpose of implementing this Act, Amended by the Act Amending Some Nepal Acts, 2075 (2018). the Commission may make necessary rules. (2) If the rules to be made under Sub-section (1) include matters involving financial burden or liability to the Government of Nepal, the Commission Amended by the Act Amending Some Nepal Acts, 2075 (2018). shall obtain the consent of the Ministry of Finance, Government of Nepal. (3) The rules made by the Commission under Sub-section (1) shall come into force from the date of publication in the Nepal Gazette. 28. Power to Issue Directives: The Commission may, subject to this Act and the rules made under this Act, issue necessary directives for the smooth conduct or causing to conduct of the work to be performed by the Commission. Repealed by the Act Amending Some Nepal Acts, 2075 (2018). Schedule